

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MAY 20, 2026
8:30 a.m.

3. SANDRA GAIL WIRTH V. ROBERT JON WIRTH

SFL20160123

This matter is before the court for a post-judgment Request for Order (RFO) filed by the Respondent on March 23, 2026, to terminate spousal support; alternatively, Respondent requests that the court order Petitioner to submit to a vocational evaluation to determine her reasonable earning capacity and employability. Respondent concurrently filed with the RFO a current Income and Expense Declaration (I&E) as well as personal declaration in support of the RFO.

A hearing was originally set for May 06, 2026. On March 26, 2026, the court granted Respondent's request to continue the hearing to May 20, 2026. Proof of service filed March 26, 2026, shows the order rescheduling the hearing was served upon Petitioner via mail that same day.

There is no proof of service in the court's file for the RFO; however, the Petitioner filed a Responsive Declaration on May 11, 2026, thereby waiving any defect in service.

Also on May 11, 2026, Petitioner submitted a request to further continue the hearing. Later that same day, Respondent filed a Responsive Declaration to Petitioner's request to reschedule the hearing. On May 12, 2026, the court denied the Petitioner's request.

As noted in the court's order denying Petitioner's request to reschedule the hearing, the decision of whether to modify spousal support requires the court to weigh the factors under Family Code section 4320. In order to accomplish this, the court needs to hold an evidentiary hearing.

**TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, MAY 20, 2026, IN DEPARTMENT 12 TO PARTICIPATE IN THE SELECTION OF
AN EVIDENTIARY HEARING DATE.**